

STATE OF NEW YORK

6652--A

2025-2026 Regular Sessions

IN SENATE

March 19, 2025

Introduced by Sen. WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to the practice of natural hair care and braiding

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The article heading of article 27 of the general business law, as added by chapter 509 of the laws of 1992, is amended to read as follows:

LICENSING OF NAIL SPECIALTY, NATURAL
HAIR [~~STYLING~~] CARE AND BRAIDING,
ESTHETICS AND COSMETOLOGY

§ 2. Subdivisions 3 and 5 of section 400 of the general business law, subdivision 3 as added by chapter 509 of the laws of 1992 and subdivision 5 as amended by chapter 343 of the laws of 1998, are amended to read as follows:

3. "Licensee" means a person licensed pursuant to this article to engage in the practice of natural hair [~~styling~~] care and braiding, esthetics, nail specialty or cosmetology, or to operate an appearance enhancement business in which such practice, as herein defined, is provided to the public.

5. a. The practice of "natural hair [~~styling~~] care and braiding" means providing for a fee, or any consideration or exchange, whether direct or indirect, any of the following services to the hair of a human being: with all ranges of hair types and textures, consulting and scalp analysis, hair texture assessment, shampooing, conditioning, providing clean, botanical and sustainable beauty products which include clarifying and moisturizing shampoos, leave-in conditioners and steam hydration conditioning, scalp treatments, wellness practices, hydration and protein

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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strengthening treatments, clays, masks, essential oils, and herbal/botanical rinses, arranging, dressing, twisting, coiling, wrapping, weaving, extending, locking, palm rolling or braiding the hair or beard by either hand or mechanical [appliances] equipment, including using clips, combs, brushes, crochet needles, latch-hook tools, interlocking tools, sewing blunt-tipped and curve needles, beading pliers, curlers, rods, rollers, hairpins, scissors, thread and yarn for styling natural textured hair or braids on all ranges of hair types and textures.

b. Such practice shall not include cutting, shaving or trimming natural hair except that such activities are permissible to the extent that such activities are incidental to the practice of minor hair shaping or trimming of naturally textured hair after the installation and finishing of braid hair extensions, natural hair styling, and natural hair braiding.

c. Such practice shall not include the application of dyes, reactive chemicals, or other preparations to alter the color or to straighten, curl, or permanently alter the structure of the hair with chemicals or heat. Techniques which result in tension on hair roots such as certain types of braiding, weaving, wrapping, locking and extending of the hair may only be performed by a natural hair [styling] care and braiding licensee or cosmetology licensee who has successfully completed an approved course of study in such techniques.

§ 3. Section 400 of the general business law is amended by adding nine new subdivisions 5-a, 5-b, 5-c, 5-d, 5-e, 5-f, 5-g, 5-h and 5-i to read as follows:

5-a. "Natural hair" means all hair types and textures that grow from the scalp with a natural curl, coil, wave or wiry pattern of the hair.

5-b. "Natural hair care" means the maintenance and overall care performed by a natural hair care specialist, a braider or a natural hair care or braiding apprentice dedicated to the health and wellness of one's hair and scalp through proper tension techniques and without the use of chemicals or the alteration of the structure of the hair.

5-c. "Textured hair" means textured hair types, including curly, coily, tight coily, afro coily, straight and wavy, including, but not limited to, various curly, coily, wavy or wiry patterns, combinations and configurations, hair strands, thickness, and volumes of hair.

5-d. "Textured styles" or "textured hair styling" means a design created on natural hair that incorporates varying patterns to create depth, dimension and visual texture using specific styling practices and techniques for hair care of all hair types and textures, specifically, curly, coily and afro coily hair, performed by a textured hairstylist or specialist who is licensed in natural hair care or cosmetology, including arranging, dressing, curly and coily styling, comb coiling, finger coiling, double strand twisting, flat-twisting or the use of curlers, rods, rollers/hairpins including the preparation of the foundation of the hair through wellness practices in order to preserve the health of the hair with botanical beauty products which include clarifying and moisturizing shampoos, leave-in conditioners, steam hydration conditioning, hydration and protein strengthening treatments, and herbal/botanical rinses; and topical agents such as gels and gelee, hairspray, foams, mousse, molding muds, moisturizers, oils, pomades, in conjunction with performing the practice of natural hair care and braiding. Such styling shall include the use of blow dryers and diffusers for the purpose of drying natural textured styles with indirect heat.

1 5-e. "Braid" means the interlacing of three or more strands of hair,
2 and can be worn in a variety of styles, including cornrows, twists,
3 locs, and box braids with or without added hair fibers.

4 5-f. "Braiding" means the styling practices and techniques performed
5 by a braid specialist, an individual who specializes in creating hair-
6 styles utilizing braiding techniques on all hair types and textures
7 which includes the use of natural human hair or synthetic hair
8 extension/fibers, natural human hair and synthetic blended fibers, deco-
9 rative beads, and other hair adornments. Minor hair shaping or trimming
10 of natural hair or hair extensions necessary for finishing braid hair
11 extensions may occur. Braiding types and techniques can include, but
12 are not limited to, individual box braids, knotless/feed-in braids,
13 cornrows, stitch cornrows, casamas, plaits, Bantu Knots, or Senegalese
14 Twists.

15 5-g. "African braiding" refers to the cultural reference of tradi-
16 tional techniques of naturally braiding and cornrowing hair, originating
17 from African communities within the African diaspora.

18 5-h. "Locking" or "loc extensions" includes, but is not limited to,
19 wrapping the hair, palm rolling techniques, grooming, interlocking,
20 crochet locking, micro/locking by a locician, an individual who is
21 knowledgeable in the practices and techniques of locking all hair types
22 and textures, and installing loc extensions including the preparation of
23 the foundation of the hair through wellness practices in order to
24 preserve the health of the hair with botanical beauty products which
25 include clarifying and moisturizing shampoos, leave-in conditioners, and
26 steam hydration conditioning treatments, hydration and moisturizing
27 techniques, protein strengthening treatments, and herbal/botanical rins-
28 es; and topical agents such as gels and gelee, hairspray, foams, mousse,
29 molding muds, moisturizers, oils, pomades, in conjunction with perform-
30 ing the practice of natural hair care and braiding.

31 5-i. "Weaving" and "extensions" means extending natural hair with the
32 addition of braids, locs or additional textured hair with human hair,
33 synthetic fibers, and hair extension; the making of wigs from human
34 hair, synthetic fibers, and hair extensions including the preparation of
35 the foundation of the hair through wellness practices in order to
36 preserve the health of the hair with botanical beauty products which
37 include clarifying and moisturizing shampoos, leave-in conditioners, and
38 steam hydration conditioning treatments, hydration and moisturizing
39 techniques, protein strengthening treatments, and herbal/botanical rins-
40 es; and topical agents such as gels and gelee, hairspray, foams, mousse,
41 molding muds, moisturizers, oils, pomades, in conjunction with perform-
42 ing the practice of natural hair care and braiding.

43 § 4. Subdivisions 1 and 3 of section 401 of the general business law,
44 subdivision 1 as amended by chapter 80 of the laws of 2015 and subdivi-
45 sion 3 as amended by chapter 341 of the laws of 1998, are amended and a
46 new subdivision 4 is added to read as follows:

47 1. No person shall engage in the practice of nail specialty, waxing,
48 natural hair [~~styling~~] care and braiding, esthetics or cosmetology, as
49 defined in section four hundred of this article, without having received
50 a license to engage in such practice in the manner prescribed in this
51 article. No person shall act as a trainee or perform any service as such
52 unless [~~he or she~~] such person has obtained a certificate of registra-
53 tion pursuant to this article.

54 3. A person licensed by any other state or country to practice nail
55 specialty, waxing, natural hair [~~styling~~] care and braiding, esthetics
56 or cosmetology shall be allowed to practice in New York state for three

1 months or less within any calendar year for the purpose of giving to, or
2 receiving from, persons who are licensed under this article training in
3 current styles, techniques or materials, provided however, that no such
4 unlicensed person may provide services to the public for any fee, or
5 other compensation, whether direct or indirect.

6 4. Notwithstanding the provisions of this section, an unlicensed
7 person practicing natural hair care and braiding in the state of New
8 York or any other state or country for at least five years shall be
9 permitted to apply for a license in New York state. Such applicants
10 shall be issued a temporary license after providing evidence of such
11 required work experience in a form approved by the department. Such
12 applicants shall be required to fulfill educational requirements includ-
13 ing forty hours of natural hair care and braid styling course curriculum
14 in infection and bacteriology, alopecia and scalp disorders and
15 diseases, salon health and safety protocols, the science of sanitary
16 practices and ergonomics for overall health and safety. Additionally,
17 applicants with prior braid expertise otherwise qualified under this
18 subdivision shall provide two certified letters of recommendation by
19 clients, employees, and/or coworkers, two images and one video of such
20 applicant's braiding work. Such temporary license may be renewed for an
21 additional year if such applicant is in the process of completing addi-
22 tional educational certification. The secretary of state shall promul-
23 gate rules and regulations with input from the advisory committee estab-
24 lished under section four hundred three of this article to ensure such
25 licensing.

26 § 5. Section 404 of the general business law, as amended by chapter
27 664 of the laws of 2023, is amended to read as follows:

28 § 404. Rules and regulations. The secretary shall promulgate rules and
29 regulations which establish standards for practice and operation by
30 licensees and trainees under this article in order to ensure the health,
31 safety and welfare of the public including licensees and trainees when
32 they are working within such establishments. Such rules and regulations
33 shall include, but not be limited to, the sanitary conditions and proce-
34 dures required to be maintained, a minimum standard of training appro-
35 priate to the duties of nail specialists, trainees, waxers, natural hair
36 ~~[stylists]~~ care and braiding specialists, estheticians, and cosmetolo-
37 gists and the provision of service by nail specialists, trainees,
38 waxers, natural hair ~~[stylists]~~ care and braiding specialists, estheti-
39 cians or cosmetologists at remote locations other than the licensee's
40 home provided that such practitioner holds an appearance enhancement
41 business license to operate at a fixed location or is employed by the
42 holder of an appearance enhancement business license. Regulations
43 setting forth the educational requirements for nail specialists and
44 trainees shall include education in the area of causes of infection and
45 bacteriology. Regulations setting forth the educational requirements for
46 cosmetologists ~~[or]~~, natural hair ~~[stylists]~~ care and braiding special-
47 ists and natural hair care and braiding apprentices shall include educa-
48 tion regarding the provision of services to individuals with all hair
49 types and textures, including, but not limited to, various curl, coil or
50 wave patterns, hair strand thicknesses, and volumes of hair. Addi-
51 tionally, such regulations for natural hair care and braiding special-
52 ists and natural hair care and braiding apprentices shall include educa-
53 tion in the area of natural hair care and braid techniques, cause of
54 infection and bacteriology, alopecia and scalp disorders and diseases,
55 salon health and safety protocols and the science of sanitary practices.
56 In promulgating such rules and regulations the secretary shall consult

1 with the state education department, the advisory committee established
2 pursuant to this article, any other state agencies and private industry
3 representatives from beauty schools and academies as may be appropriate
4 in determining minimum training requirements.

5 § 6. Section 406 of the general business law, as added by chapter 509
6 of the laws of 1992, subdivisions 1, 2 and 4 as amended by chapter 341
7 of the laws of 1998, paragraph e of subdivision 1 as amended by chapter
8 376 of the laws of 2015, paragraph f of subdivision 1 as added by chap-
9 ter 80 of the laws of 2015, paragraph c of subdivision 2 as amended by
10 section 3 of part D of chapter 328 of the laws of 2014 and paragraph a
11 of subdivision 3 as amended by chapter 324 of the laws of 1998, is
12 amended to read as follows:

13 § 406. License application; procedure; requirements; temporary
14 license. 1. a. Any person intending to practice nail specialty, waxing,
15 natural hair [~~styling~~] care and braiding, esthetics or cosmetology as
16 defined in this article, or to own or operate an appearance enhancement
17 business, shall first make application to the secretary for a license
18 therefor.

19 b. Such application shall be in a form and manner prescribed by the
20 secretary and shall contain such information as, in the secretary's
21 judgment, is reasonable and necessary to determine the qualifications
22 and fitness for licensing of the applicant.

23 c. The application shall be subscribed by the applicant and affirmed
24 under penalty of perjury.

25 d. Each application shall be accompanied by the appropriate fee as
26 prescribed by this article.

27 e. Each application shall be accompanied by a certificate of a duly
28 licensed physician, or nurse practitioner to the extent authorized by
29 law and consistent with subdivision three of section six thousand nine
30 hundred two of the education law on a form prescribed by the secretary,
31 showing freedom from any infectious or communicable disease which
32 certificate shall have been issued within thirty days prior to the date
33 of the filing of the application.

34 f. Notwithstanding the educational requirements of this section, a
35 trainee may obtain a license to practice nail specialty if such trainee
36 provides satisfactory evidence to the secretary that such trainee has
37 been actively engaged in a traineeship for a period of one year and has
38 completed a course of study set forth by the secretary. Such course of
39 study may be delivered by electronic means.

40 2. a. Any person seventeen years of age or older may apply to the
41 secretary for a license to practice nail specialty, waxing, natural hair
42 [~~styling~~] care and braiding, esthetics or cosmetology.

43 b. Each such application shall also be accompanied by satisfactory
44 evidence of having taken and passed the appropriate examination or exam-
45 inations offered by the secretary pursuant to this article for the
46 license sought and evidence of the successful completion of an approved
47 course of study in nail specialty, waxing, natural hair [~~styling~~] care
48 and braiding, esthetics or cosmetology in a school duly licensed pursu-
49 ant to the education law.

50 c. Any applicant for a license to practice nail specialty, waxing,
51 natural hair [~~styling~~] care and braiding, esthetics or cosmetology may
52 submit satisfactory evidence of licensure to practice an equivalent
53 occupation issued by any other state, territory, protectorate or depend-
54 ency of the United States or any other country in lieu of the evidence
55 of schooling and examination required by this subdivision, provided that
56 such license was granted in compliance with standards which were, in the

1 judgment of the secretary, not lower than those of this state and
2 provided that such state, territory, protectorate, dependency, or coun-
3 try extends similar reciprocity to the licensees of this state, or the
4 applicant practiced an equivalent occupation in such state, territory,
5 protectorate, dependency or country for a minimum of five years, or the
6 applicant is a member of the household of a member of the armed forces
7 of the United States, national guard or reserves and was a member of
8 such household before such member relocated to the state.

9 d. Notwithstanding the educational requirements of this section and
10 the testing requirements of this section, an applicant who otherwise has
11 met the licensing requirements of this article for a nail specialist,
12 waxer, natural hair [~~stylist~~] care and braiding specialist, esthetician
13 or cosmetologist who shall provide satisfactory evidence [~~he or she has~~]
14 they have been actively and continuously engaged in the practice of nail
15 specialty, waxing, natural hair [~~styling~~] care and braiding, esthetics
16 or cosmetology for at least one year prior to the effective date of this
17 article, may be issued a license for nail specialty, waxing, natural
18 hair [~~styling~~] care and braiding, esthetics or cosmetology pursuant to
19 this article. Notwithstanding the educational and testing requirements
20 of this section, a person licensed to practice barbering under article
21 twenty-eight of this chapter who otherwise has met the licensing
22 requirements of this article may apply for a temporary natural hair care
23 and braiding license in order to study and take the natural hair care
24 and braiding written examination. Upon passing, such licensed barber
25 shall be issued a license to practice natural [~~hairstyling~~] hair care
26 and braiding. Other than applicants licensed under article twenty-eight
27 of this chapter, those persons who apply after a twelve month period
28 from the effective date of this article will be required to provide
29 evidence of training and to take the examination or examinations as
30 required for other licenses pursuant to this article.

31 e. Upon acceptance by the secretary of a proper application for an
32 operator's license to practice nail [~~speciality~~] specialty, waxing,
33 natural hair [~~styling~~] care and braiding, esthetics or cosmetology, the
34 secretary may issue a temporary operator's license which shall expire
35 six months from issuance. Upon good cause shown, the secretary may renew
36 a temporary operator's license for one additional six-month period upon
37 filing the appropriate application and fee.

38 3. Appearance enhancement business license. a. Any person, eighteen
39 years of age or older, or any firm, limited liability company, partner-
40 ship or corporation having at least one member eighteen years of age or
41 older may apply to the secretary for an appearance enhancement business
42 license.

43 b. Each such application for an appearance enhancement business
44 license shall be accompanied by evidence of a bond or liability insur-
45 ance.

46 4. a. Notwithstanding any provision contained in this article to the
47 contrary, if any person, eligible for any license pursuant to this arti-
48 cle, should be called to active military service at or during the time
49 application for any license is required to be filed and license fee
50 paid, pursuant to the provisions of this article, the period within
51 which said application may be filed and license fee may be paid, is
52 extended on behalf of such person, until three months after the termi-
53 nation of said military service.

54 b. In the case of persons who are called to active military service
55 and will be discharged from active military service, the period of two
56 years specified in paragraph d of subdivision two of this section need

1 not be continuous. The length of time such person was engaged in the
2 practice of nail specialty, waxing, natural hair [~~styling~~] care and
3 braiding, esthetics or cosmetology before entering active military
4 service may be added to any period of time during which such person was
5 or is engaged in the practice of nail specialty, waxing, natural hair
6 [~~styling~~] care and braiding, esthetics or cosmetology after the termi-
7 nation of active military service.

8 § 7. Subdivision 1 of section 407 of the general business law, as
9 amended by chapter 255 of the laws of 1999, is amended to read as
10 follows:

11 1. The examinations for the license to practice natural hair [~~styling~~]
12 care and braiding, esthetics, nail specialty and cosmetology shall be
13 practical and written. The examinations for the license to practice
14 waxing shall be limited to a written examination only. The secretary
15 shall determine reasonable standards of performance for each license and
16 shall evaluate the prospective applicants and applicants on the basis of
17 such standards. The objectives of the examinations shall be to [~~insure~~]
18 ensure that prospective applicants and applicants have sufficient basic
19 skills to safeguard the health and safety of the public and to insure
20 that prospective applicants and applicants have attained adequate levels
21 of skill to competently engage in the activities authorized by the
22 license.

23 § 8. Section 408 of the general business law is amended by adding a
24 new subdivision 12 to read as follows:

25 12. Any current natural hair styling licensee who processes a renewal
26 after the effective date of this subdivision shall receive the updated
27 natural hair care and braiding license pursuant to this article.

28 § 9. The general business law is amended by adding two new sections
29 408-c and 408-d to read as follows:

30 § 408-c. Natural hair care and braiding apprentice. 1. A natural hair
31 care and braiding apprentice shall be a beginner and non-professional
32 individual seventeen years of age or older with less than two years
33 experience that wants to enter the natural hair care and braiding indus-
34 try and receive hands-on training. Such person shall be pursuing in good
35 faith a one-year hands-on paid work study apprenticeship program in the
36 practice of natural hair care and braiding under the tutelage, super-
37 vision, and direction of a natural hair care and braiding licensee who
38 is a senior natural hair care and braiding specialist pursuant to
39 section four hundred eight-d of this article who assists such licensee
40 in such practice. A business appearance enhancement licensed salon
41 shall register with the department of licensing to participate in such
42 apprentice program. Such business appearance enhancement salon shall
43 hire such apprentice in a full or part time capacity for a minimum of
44 twenty hours to a maximum of forty hours per week to participate in such
45 apprentice program. The secretary of state shall promulgate rules and
46 regulations regarding salons and salon supervisors, for tutelage, guide-
47 lines and requirements of natural hair care and braiding instructors and
48 textured hairstylist instructors. The advisory committee established
49 under this article shall advise the secretary of state and department of
50 licensing on such rules and regulations pertaining to curriculum and
51 testing requirements.

52 2. a. An apprentice shall register with the department of licensing
53 for a one-year natural hair care and braiding apprentice license. Upon
54 application, the participating appearance enhancement business salon
55 where such training shall occur shall be listed. Such license shall be

1 renewable for an additional one year, if necessary to complete the
2 required mandatory educational courses.

3 b. Each apprentice license issued as provided in this section shall be
4 posted in a conspicuous place where such apprentice is actually engaged
5 in the practice of natural hair care and braiding as an apprentice.

6 3. A mandatory forty hour online, in-person or hybrid course of study
7 shall be required in conjunction with this apprenticeship program from
8 an accredited school approved by the New York state department of
9 licensing in the areas of public health and safety, science and sanitary
10 practices, alopecia and scalp disorders, and ergonomics for overall
11 health and safety. Additionally, a natural hair care and braid styling
12 course in the theory and proper procedures for braiding, twisting, lock-
13 ing and weaving techniques with demonstrations and hands-on training
14 shall be required.

15 4. Upon completion of the requirements of this section, the apprentice
16 shall be eligible to apply to take a New York state natural hair care
17 and braiding practical examination. Upon passing such New York state
18 practical examination, such apprentice shall receive a natural hair care
19 and braiding license.

20 § 408-d. Senior natural care and braiding specialist. 1. A senior
21 natural hair care and braiding specialist shall be licensed in natural
22 hair care and demonstrate advanced expertise in the care, styling and
23 maintenance of all natural hair types and textures.

24 2. Such senior status may be applied for following advanced certifi-
25 cation as determined by the department but shall at a minimum include
26 additional courses of study in which such curriculum is a minimum of
27 forty hours and a specialized examination.

28 3. Such specialist shall be employed by a licensed appearance enhance-
29 ment business in the state of New York.

30 § 10. Subdivision 1 of section 409 of the general business law, as
31 amended by section 2 of part Y of chapter 60 of the laws of 2011, is
32 amended to read as follows:

33 1. The non-refundable fee for an application for a license to engage
34 in the practice of nail specialty, waxing, natural hair [~~styling~~] care
35 and braiding, esthetics or cosmetology, shall be forty dollars initially
36 and for each renewal thereof the fee shall be forty dollars; the fee for
37 a temporary license and each renewal shall be ten dollars.

38 § 11. Paragraph a of subdivision 2 of section 410 of the general busi-
39 ness law, as amended by chapter 80 of the laws of 2015, is amended to
40 read as follows:

41 a. The secretary may issue an order directing the cessation of any
42 activity related to nail specialty, waxing, natural hair [~~styling~~] care
43 and braiding, esthetics or cosmetology for which a license is required
44 by this article upon a determination that a person, partnership, limited
45 liability company or business corporation, engaging in the business or
46 occupation of, or holding [~~himself, herself~~] themselves or itself out as
47 or acted, temporarily or otherwise, as a nail specialist, natural hair
48 [~~stylist~~] care and braiding specialist, esthetician or cosmetologist
49 within this state without a valid license being in effect. The secretary
50 shall, before making such determination and order, afford such person,
51 partnership, limited liability company or business corporation an oppor-
52 tunity to be heard in person or by counsel in reference thereto in an
53 adjudicatory proceeding held pursuant to section four hundred eleven of
54 this article as applicable.

1 § 12. Subdivision 1 of section 412 of the general business law, as
2 amended by chapter 80 of the laws of 2015, is amended to read as
3 follows:

4 1. The practice of nail specialty, waxing, natural hair [~~styling~~] care
5 and braiding, esthetics or cosmetology without a license or while under
6 suspension or revocation, or in violation of an order directing the
7 cessation of unlicensed activity issued by the secretary pursuant to
8 section four hundred ten or four hundred eleven of this article, is a
9 violation and is subject to a civil penalty of up to five hundred
10 dollars for the first violation; one thousand dollars for a second such
11 violation; and two thousand five hundred dollars for a third violation
12 and any subsequent violation.

13 § 13. This act shall take effect on the sixtieth day after it shall
14 have become a law.